

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404430	ALDAMA vs COSTCO WHOLESALE CORPORATION	MOTION TO COMPEL PRODUCTION OF DOCUMENTS REQUESTED AT DEPOSITION

Tentative Ruling:

The plaintiffs' motion to compel production of documents at deposition is granted in part and denied in part. Specifically, it is granted as to all of the described documents that were in the defendant's possession prior to the retention of outside counsel. It is otherwise denied but on the condition that the defendant agrees on the record to abandon affirmative defenses ##11, 16, and 18 and to strike them from the defendant's answer.

The defendant's request for sanctions is denied.

Analysis:

As to responsive documents possessed by the defendant prior to the retention of counsel, the claim that responsive documents are attorney work-product fails. As to those documents, the objections are overruled and the motion is granted. The declaration of Koenig establishes that the remaining documents requested qualify as attorney work-product and are therefore privileged unless the defendant has placed the sufficiency of the investigation at issue. No evidentiary objection has been raised to that declaration. The defendant has represented that it is no longer relying upon affirmative defenses ##11, 16, and 19, but has not sought to amend its answer or formally abandon its reliance upon those defenses. If such an abandonment is made on the record, then the objection shall be sustained and the motion shall be denied. Because the motion is not entirely denied, the defendant's request for sanctions is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503187	SUGIHARTO vs SOLARIS PAPER, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

The plaintiff's request for judicial notice is denied. The defendant's motion to compel arbitration is denied.

Analysis:

The documents of which judicial notice is requested are irrelevant to the Court's analysis, and the request is denied for that reason.